

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.

J. M. (an infant) by his Mother and
Natural Guardian ALECIA RUMPH, and
ALECIA RUMPH, individually,

Plaintiffs,

Plaintiffs designate
NEW YORK COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

POLICE OFFICER STEVEN SMITH
(Tax # 959256; Shield # 19068),

Defendant.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's Attorney within twenty days after the
service of this summons, exclusive of the day of service (or within thirty (30) days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear, judgment will be taken against you
by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
January 8, 2020

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiffs
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

Defendant's Address:

POLICE OFFICER STEVEN SMITH (Tax # 959256; Shield # 19068)
NYPD 33rd Police Precinct
2207 Amsterdam Avenue
New York, NY 10032

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.

J. M. (an infant) by his Mother and
Natural Guardian ALECIA RUMPH,

Plaintiff,

-against- COMPLAINT

POLICE OFFICER STEVEN SMITH
(Tax # 959256; Shield # 19068),

Defendant.

-----X

J. M. (an infant) by his Mother and Natural Guardian ALECIA RUMPH (hereinafter “McKoy” or “plaintiff”), by his attorney(s) THE LAW OFFICES OF WALE MOSAKU, P.C., complaining of the defendant POLICE OFFICER STEVEN SMITH (Tax # 959256; Shield # 19068) (hereinafter referred to as "Smith"), upon information and well founded belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to plaintiff under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights, privileges, and immunities secured to plaintiff by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States; and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and statutes of the City and/or State of New York.

THE PARTIES

2. The infant plaintiff J. M. is a resident of the City of New York, who resides in Bronx County, City and State of New York. J. M. is African-American.
3. J. M.’s present action is brought by his mother and natural guardian ALECIA RUMPH (hereinafter “Rumph”). Rumph is a resident of the City of New York, who resides in Bronx County, City and State of New York. Rumph is an African-American female of full age.

4. At all times herein, SMITH was employed as a law enforcement officers of the City of New York, State of New York, was acting under the color of his official capacity, and his acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

FACTUAL ALLEGATIONS

5. On or about February 14, 2019, at approximately 11:30 p.m., J. M. was unlawfully arrested by non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2 in front of a Domino's Pizza store/restaurant located at 1988 Amsterdam Avenue, New York, New York 10032 ("subject location").
6. Approximately 30 minutes prior to his arrest, J. M. had been walking on a pedestrian walkway on the Macombs Dam Bridge, and headed towards his friend's house.
7. That as J. M. was walking, a bicycle, upon which were two males of East Asian heritage, collided with him, breaking the screen of his cellular phone (which he was holding in his hand) in the process.
8. At the time of the incident, the two males who were riding the bicycle were wearing uniforms (and hats) of the Domino's Pizza franchise.
9. After the collision occurred, J. M. told the Domino's Pizza employees that they had damaged his phone, and told them that he was going to call the police. In response, the Domino's Pizza employees told J. M. that they would reimburse him for the damage to his phone, but told him that they did not have enough money on them, and asked J. M. to follow them to their store located at the subject location, at which point they would fully reimburse him for the damage to his phone.
10. Upon arrival at the subject premises however, the Domino's Pizza employees had only given J. M. a total of \$60.00 and were essentially giving J. M. the run around.

11. As such, in frustration, J. M. flagged down non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2, who at the time were driving by the front of the subject location in their NYPD patrol vehicle, and reported the incident to said non-party officers.
12. However, after J. M. had relayed his complaint to non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2, they told him that they did not believe him. Said non-party NYPD officers then approached the Domino's Pizza employees and spoke with said Domino's Pizza employees.
13. After speaking to the Domino's Pizza employees, non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2 returned to J. M. and informed him that the Domino's Pizza employees had informed them that he (J. M.) had robbed them with a knife.
14. J. M. denied said allegation, and expressed surprise at the turn of events, informing non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2 that it would make no sense for him to rob said Domino's Pizza employees, and then turn around and flag them (the officers) down in order to file a complaint.
15. At that juncture, non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2 searched J. M. but did not recover anything illegal upon his person. Nevertheless, at that juncture, J. M. was arrested and transported to the 33rd Police Precinct by non-party NYPD Police Officer John Doe 1 and Police Officer John Doe 2.
16. At the 33rd precinct J. M. was photographed and fingerprinted.
17. J. M. was subsequently transported to Manhattan Central Booking situated within the Criminal Courthouse building located at 100 Centre Street, New York, NY 10007.
18. At approximately 08:30 p.m. on February 15, 2019, J. M. was arraigned before a NYC Criminal Court Judge on the following felony charge: Robbery in the 1st Degree [P.L. 160.15(2)]. The Criminal Court Docket number is "2019NY006169".

19. Within the criminal complaint, defendant Smith alleged, *inter alia*, that “*I am informed by an individual of an address known to the District Attorney’s Office that he observed the defendant display a knife and state in sum and substance: Give me \$100 or the bike*”.
20. In fact, said statement is false, as defendant Smith was not present at the scene of J. M.’s arrest and as such was not given such a statement by anyone.
21. At the time of J. M.’s arraignment, he pleaded “not guilty”. However, bail was set in the amount of \$10,000.00, which J. M.’s family could not afford to post immediately.
22. As such, J. M. was remanded to the Spofford Juvenile detention Center, where he remained until approximately 11:00 p.m. on February 19, 2019, at which time he was released after Rumph was able to secure the funds to bail him out.
23. Upon his release, J. M. was compelled to report to the New York County Criminal Courthouse on February 20, 2019.
24. The criminal action against J. M. was dismissed on June 11, 2019.
25. At the time of J. M.’s arrest, the non-party NYPD Police Officers assaulted and battered J. M. by forcefully handcuffing him against his will and without his consent, causing J. M. to suffer bruising, lacerations, pain and discomfort.

CAUSE OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER 42
U.S.C § 1983/NEW YORK STATE LAW

26. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.
27. The above-described respective arrest, detention and imprisonment of J. M. was/were without just or probable cause and without any warrant or legal process directing or authorizing J. M.’s arrest or subsequent detention.

28. As a result of J. M.'s above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
29. Consequently, J. M. has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against the defendant officers, individually and severally.
- CAUSE OF ACTION: MALICIOUS PROSECUTION UNDER 42 U.S.C § 1983/NEW YORK STATE LAW
30. The commencement and continued prosecution of the criminal judicial proceeding(s) against J. M., including his arrest, imprisonment(s), and the charges against J. M. were committed by or at the insistence of the defendant officer, was without probable cause or legal justification, and with malice.
31. That the defendant was directly involved in the initiation of criminal proceedings against J. M.
32. That the defendant lacked probable cause to initiate criminal proceedings against J. M.
33. That the defendant acted with malice in initiating criminal proceedings against J. M.
34. That the defendant was directly involved in the continuation of criminal proceedings against J. M.
35. That the defendant lacked probable cause in continuing criminal proceedings against J. M.
36. That the defendant acted with malice in continuing criminal proceedings against J. M.
37. That the defendant misrepresented and falsified evidence throughout all phases of the criminal proceedings.

38. That the defendant misrepresented and falsified evidence to the prosecutors in the New York County District Attorney's ("NYCDA") office.
39. That the defendant withheld exculpatory evidence from the prosecutors in the NYCDA's office.
40. That the defendant did not make a complete statement of facts to the prosecutors in the NYCDA's office.
41. The criminal judicial proceeding initiated against J. M. by the defendant was dismissed on June 11, 2019, and terminated in his favor.
42. The arrest, imprisonment and prosecution of J. M. by the defendant was/were malicious and unlawful, because J. M. had committed no crime and there was no probable cause to believe that J. M. had committed any crimes.
43. The defendant's actions were intentional, unwarranted and in violation of the law. The defendant had full knowledge that the charges made before the Court against J. M. were false and untrue.
44. As a consequence of the malicious prosecution by the defendant, J. M. suffered a significant loss of liberty, humiliation, mental anguish, depression and his constitutional rights were violated.
45. J. M. hereby demands compensatory damages from defendant, in an amount to be determined at trial, against the City of New York.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

46. By this reference, J. M. incorporates each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.
47. Defendant, in his capacity as an "investigating officer" fabricated evidence against J. M.

48. The evidence that defendant fabricated against J. M. was likely to influence a jury's decision.
49. Defendant forwarded the fabricated evidence concerning J. M. to the prosecutors in the NYCDA's office.
50. That J. M. suffered a deprivation of his liberty as a result of the above-referenced actions of defendant.
51. By creating fabricated evidence against J. M.; and forwarding said fabricated evidence to prosecutors which directly resulted in J. M. being deprived of his liberty, defendant violated J. M.'s constitutional right to a fair trial under the Due Process Clause of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.
52. As a consequence of defendant's actions, J. M. suffered loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
53. J. M. hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against the defendant.

WHEREFORE, plaintiff prays for judgment against defendant officer, as follows: for compensatory damages in an amount to be proven at trial; for exemplary and punitive damages in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.

By:

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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J. M. (an infant) by his Mother and
Natural Guardian ALECIA RUMPH, and
ALECIA RUMPH, individually,

Plaintiffs,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

POLICE OFFICER STEVEN SMITH
(Tax # 959256; Shield # 19068),

Defendant.

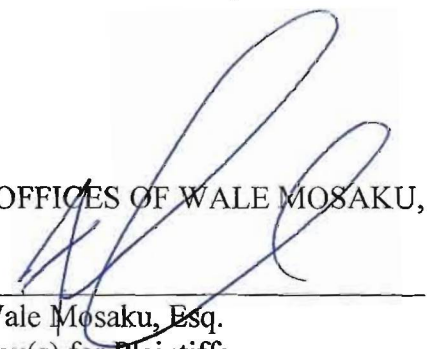
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiffs and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
January 8, 2020

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiffs
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